STATE OF NEW YORK
UNEMPLOYMENT INSURANCE APPEAL BOARD
PO Box 15126
Albany NY 12212-5126

DECISION OF THE BOARD

Mailed and Filed: MAY 07, 2026

IN THE MATTER OF:
Appeal Board No. 640066

PRESENT: RANDALL T. DOUGLAS, MEMBER

In Appeal Board Nos. 640065, 640066, and 640067, the claimant appeals from the decisions of the Administrative Law Judge filed November 12, 2025, which sustained the Commissioner of Labor's timeliness objection and continued in effect the initial determinations disqualifying the claimant from receiving benefits, effective April 6, 2024, on the basis that the claimant voluntarily separated from employment without good cause; charging the claimant with an overpayment of $9,230.00 in benefits recoverable pursuant to Labor Law § 597 (4); and reducing the claimant's right to receive future benefits by eight effective days and charging a civil penalty of $1,384.50 on the basis that the claimant made a willful misrepresentation to obtain benefits.

At the combined hearing before the Administrative Law Judge, all parties were accorded a full opportunity to be heard and testimony was taken. There were appearances by the claimant and on behalf of the employer.

Based on the record and testimony in this case, the Board makes the following

FINDINGS OF FACT: The Department of Labor issued notices of determination to the claimant with a mail date of March 13, 2025. The claimant was no longer living at the location where the determinations were addressed. The claimant ultimately received the determinations in the mail. The determinations included instructions stating that the claimant could request a hearing within 30 days.

The claimant spoke by phone with the Department of Labor on June 10, 2025. At this point, the claimant was aware of problems with her claim, including the alleged overpayment. The claimant completed a "Claimant Request for Hearing" form dated July

22, 2025. She did not provide any response in the space that asked her to explain why her hearing request was being submitted more than 30 days after the date of the determinations. The claimant submitted her hearing request to the Department of Labor by secure message on July 25, 2025.

OPINION: The credible evidence establishes that the Department of Labor issued notices of determination to the claimant with a mail date of March 13, 2025. The claimant received the determinations in the mail, although the claimant cannot identify the date when she received them. Under these circumstances, the claimant is deemed to have received the determinations five business days after their mail date, on March 20, 2025 (see 12 NYCRR § 461.1[a]). From that date, the claimant had 30 calendar days to request a hearing. As the thirtieth day was Saturday, April 19, the claimant's time to request a hearing extended through Monday, April 21, 2025. Even after discussing her claim with the Department of Labor on June 10, 2025, the claimant did not submit her hearing request until July 25, 2025, well after her time to request a hearing expired. Accordingly, we conclude that the claimant's hearing request was untimely, and the claimant is not entitled to a decision on the merits of the determinations.

DECISION: The decisions of the Administrative Law Judge are affirmed.

In Appeal Board Nos. 640065, 640066, and 640067, the Commissioner of Labor's timeliness objection is sustained.

In Appeal Board Nos. 640065, 640066, and 640067, the initial determinations, disqualifying the claimant from receiving benefits, effective April 6, 2024, on the basis that the claimant voluntarily separated from employment without good cause; charging the claimant with an overpayment of $9,230.00 in benefits recoverable pursuant to Labor Law § 597 (4); and reducing the claimant's right to receive future benefits by eight effective days and charging a civil penalty of $1,384.50 on the basis that the claimant made a willful misrepresentation to obtain benefits, are continued in effect.

The claimant is denied benefits with respect to the issues decided herein.

RANDALL T. DOUGLAS, MEMBER